

Amended Excerpts

1. Line 277 through 282:

- 277 (i) cooperate with and enter into an agreement with the state or an agency of the state or
 278 otherwise contract to finance to establish transit facilities and equipment or to study
 279 or plan transit facilities;
 280 (j) subject to Subsection ~~§→ 17B-2a-808.1(4)~~17B-2a-811.1(8) ←§ , issue bonds
 280a as provided in and subject to
 281 Chapter 1, Part 11, Special District Bonds, to carry out the purposes of the district;
 282 (k) from bond proceeds or any other available funds, reimburse the state or an agency of

2. Line 426 through 431:

- 426 and
 427 (C) the governor shall designate two appointees as serving an initial term for two
 428 years, and one appointee as serving an initial term of five years.
 428a ~~§→~~ (d) Each transit commissioner:
 428b (i) serves and represents the whole of the large public transit district; and
 428c (ii) does not represent a specific geographic portion of the large public transit
 428d district. ←§
 429 (4) (a) If a vacancy occurs, the nomination and appointment procedures to replace the
 430 individual shall occur in the same manner described in Subsection (2) as for the
 431 transit commissioner creating the vacancy.

3. Line 445 through 451:

- 445 (i) public transit and mobility;
 446 (ii) public finance and budgeting;
 447 (iii) community development and engagement;
 448 (iv) §→ ~~law,~~ ←§ public policy §→ , ←§ or §→ ~~public~~ ←§ administration; or
 449 (v) business management.
 450 (b) An individual who holds an elected office is ineligible for nomination, appointment,
 451 or service on the transit commission.

4. Line 500 through 505:

- 500 (iii) supply copies of the report under Subsection (2)(g)(ii) to the general public upon

501 request in a quantity that the board considers appropriate;
502 (h) report at least annually to the Transportation Commission created in Section 72-1-301
503 the district's short-term and §→ **strategic** ←§ long-range §→ **public** ←§ transit plans,
503a including the transit
504 portions of applicable regional transportation plans adopted by a metropolitan
505 planning organization established under 23 U.S.C. Sec. 134;

5. Line 564 through 569:

564 (a) approve an annual budget, which shall emphasize fiscal responsibility, increasing
565 ridership, and maintaining a state of good repair;
566 (b) approve any interlocal agreement with a local jurisdiction;
567 (c) approve a strategic §→ **long-range transit** ←§ plan for development and operations
567a proposed by the executive
568 director in accordance with Subsection 17B-2a-811.1(5)(b);
569 (d) vote on adoption of transit commission ordinances and bylaws; and

6. Line 570 through 578:

570 (e) review and recommend a proposal from the executive director for the issuance of a
571 bond.
572 (4) The transit commission shall:
572a §→ (a) **in consultation with local stakeholders, work to establish and enhance**
572b **transit infrastructure to provide cohesive and efficient public transit services**
572c **throughout the service area of the large public transit district;**
573 [{**(a)**}](**b**) ←§ cause an annual audit of all public transit district books and accounts to
573a be made by
574 an independent certified public accountant;
575 §→ [{**(b)**}](**c**) ←§ (i) as soon as practicable after the close of each fiscal year,
575a submit to each §→ **county, municipality,** ←§ council
576 of governments §→ , ←§ and metropolitan planning organization within the public
576a transit
577 district, and make available upon request, a financial report showing:
578 (A) the result of the transit district operations during the preceding fiscal year;

7. Line 582 through 589:

582 (C) the transit district's financial status on the final day of the fiscal year; and
583 (D) the transit district's progress and efforts to improve the transit district's fiscal

584 outlook relative to the previous fiscal year; and
585 (ii) supply copies of the report under Subsection $\hat{S} \rightarrow [\{ \textcolor{blue}{(4)(b)(i)} \}] \textcolor{red}{(4)(c)(i)} \leftarrow \hat{S}$ to
585a the general public upon
586 request;
587 $\hat{S} \rightarrow [\{ \textcolor{blue}{(c)} \}] \textcolor{red}{(d)} \leftarrow \hat{S}$ (i) direct the internal auditor appointed under Section
587a 17B-2a-810 to conduct
588 audits that the transit commission determines to be the most critical to the success
589 of the organization;

8. *Line 590 through 599:*

590 (ii) if requested by the executive director, direct the internal auditor appointed under
591 Section 17B-2a-810 to conduct an audit of an internal issue of the large public
592 transit district; and
593 (iii) hear audit reports for audits conducted in accordance with this Subsection $\hat{S} \rightarrow [\{ \}$
593a $\{ \textcolor{blue}{(4)(c)} \}] \textcolor{red}{(4)(d)} \leftarrow \hat{S}$;
594 $\hat{S} \rightarrow [\{ \textcolor{blue}{and} \}]$
595 $[\{ \textcolor{red}{(d)} \}] \textcolor{red}{(e)} \leftarrow \hat{S}$ at least annually, engage with the safety and security team of the large
595a public transit
596 district to ensure coordination with local municipalities and counties $\hat{S} \rightarrow [\{ \textcolor{blue}{:} \}]$;
596a **$\textcolor{red}{(f)}$ at least annually, engage with the relevant metropolitan planning organizations**
596b **and other stakeholders;**
596c **$\textcolor{red}{(g)}$ at least annually, for the commissioners nominated by the councils of**
596d **government, engage with the councils of government about community and local**
596e **needs, investments, and services;**
596f **$\textcolor{red}{(h)}$ engage with elected officials or staff from municipalities and counties within the**
596g **large public transit district; and**
596h **$\textcolor{red}{(i)}$ consult with local officials and stakeholders:**
596i **$\textcolor{red}{(i)}$ to review routes, service changes, and service improvements; and**
596j **$\textcolor{red}{(ii)}$ regarding the approvals described in Subsections (3)(a) through (c).** $\leftarrow \hat{S}$
597 (5) A transit commission of a large public transit district may:
598 (a) approve and pass ordinances, resolutions, and orders that are:
599 (i) not repugnant to the United States Constitution, the Utah Constitution, or the

9. *Line 720 through 735:*

720 (h) supervises and has supervisory authority over all employees of the large public
721 transit district.

722 (5) The executive director shall:
 723 ~~§→ [{ (a) as described in Subsection (6), create and present the budget of the large public~~
 ~~}] ←§~~
 724 ~~§→ [{ transit district to the transit commission for approval; }]~~
 725 ~~[{ (b) (i) at least as frequently as every four years, in consultation with the transit }] ←§~~
 726 ~~§→ [{ commission, metropolitan planning organizations, operations specialists of the }] ←§~~
 727 ~~§→ [{ large public transit district, and other relevant stakeholders, develop a strategic }] ←§~~
 728 ~~§→ [{ plan for the district that aligns with relevant transportation and public transit }] ←§~~
 729 ~~§→ [{ plans, including corresponding proposed projects on time horizons of five, 10, and }]~~
 ~~←§~~
 730 ~~§→ [{ 20 years; and }]~~
 731 ~~[{ (ii) present the strategic plan described in Subsection (5)(b)(i) to the }~~
 731a ~~transit }] ←§~~
 732 ~~§→ [{ commission for approval; }]~~
 732a (a) (i) as described in Subsection (6), create and present the budget of the large
 732b public transit district to the transit commission for approval; and
 732c (ii) provide notice of the proposed budget hearing and a copy of the proposed
 732d budget to the counties and municipalities within the large public transit district no
 732e later than 30 days before the hearing;
 732f (b) (i) at least as frequently as every four years, in consultation with the transit
 732g commission and relevant metropolitan planning organizations, develop a strategic
 732h long-range transit plan for the district that aligns with relevant transportation and
 732i public transit plans on time horizons of five, 10, and 20 years;
 732j (ii) provide the proposed strategic long-range transit plan described in Subsection
 732k (5)(b)(i) to councils of government, counties, municipalities and other relevant
 732l stakeholders for review and input; and
 732m (iii) after considering input received under Subsection (5)(b)(ii), present the
 732n proposed strategic long-range transit plan described in Subsection (5)(b)(i) to the
 732o transit commission for approval; ←§
 733 (c) (i) propose for transit commission approval any ordinances or bylaws with effect
 734 outside the transit district organization; and
 735 (ii) develop and implement internal transit district policies;

10. Line 752 through 758:

752 transit-oriented development;
 753 (j) create and pursue funding opportunities for transit capital and service initiatives to

754 meet anticipated growth within the public transit district and in accordance with the
755 strategic \$→ **long-range transit** ←\$ plan;
756 (k) regulate each transit facility that the public transit district owns and operates,
757 including:
758 (i) fix rates, rentals, charges and any classifications of rates, rentals, and charges;

11. *Line 769 through 778:*

769 custodian's services from the interest earnings of the investment fund for which the
770 custodian is appointed;
771 (n) ensure that the policies established by the public transit district meet state and federal
772 regulatory requirements and federal grantee eligibility; \$→ [**and**] ←\$
773 (o) coordinate with political subdivisions within the large public transit district and the
774 department to coordinate public transit services provided by the large public transit
775 district with pilot services related to public transit innovation grants \$→ [{ }] ; **and**
775a **(p) require crime insurance for district officers and employees charged with the**
775b **handling of district funds.** ←\$
776 (6) (a) The executive director shall prepare and submit to the transit commission an
777 annual operating budget no later than 60 days before the beginning of each fiscal year.
778 (b) The budget shall include:

12. *Line 815 through 820:*

815 forma financial statement.
816 (ii) The ten-year budget projection and pro forma shall include:
817 (A) projected revenues by source, including farebox revenue, sales tax receipts,
818 federal grants, state contributions, \$→ **contributions from local governments,** ←\$
818a and other operating income;
819 (B) projected operating and capital expenditures, including personnel costs, fleet
820 maintenance and replacement, fuel and energy costs, facilities maintenance,

13. *Line 867 through 875:*

867 was collected within each respective county, city, or town and allocated to the
868 large public transit district as provided in this part;
869 (ii) how much revenue described in Subsection (11)(a)(i) was allocated to provide
870 public transit services utilized by residents of each \$→ **county,** ←\$ **city** \$→ , ←\$
870a and town; \$→ [{ **and** }] ←\$
871 (iii) how the revenue described in Subsection (11)(a)(i) was spent to provide public

872 transit services utilized by residents of each respective §→ **county**, ←§ city §→ , ←§
872a and town §→ [{ }] ; **and**
872b **(iv) the ridership of all transit services.** ←§
873 (b) After providing the report described in Subsection (11)(a), the executive director
874 shall provide the report to each county, city, and town within the boundary of the
875 large public transit district.

14. Line 878 through 885h:

878 capital development projects administered by the Department of Transportation.
879 (12) The executive director shall report at least annually to the Transportation Commission
880 created in Section 72-1-301, including:
881 (a) the district's short-term and §→ [{ **long-range public transit plans** }] **strategic**
881a **long-range transit plans** ←§ , including the portions of
882 applicable regional transportation plans adopted by a metropolitan planning
883 organization established under 23 U.S.C. Sec. 134; and
884 (b) any fixed guideway capital development projects that the executive director would
885 like the Transportation Commission to consider.
885a §→ **(13) The executive director or the executive director's designee shall meet and**
885b **engage:**
885c **(a) with elected officials or staff from the relevant metropolitan planning**
885d **organizations, councils of government, counties, and municipalities within the large**
885e **public transit district; and**
885f **(b) at least annually with elected officials or staff from any county or municipality**
885g **that provides direct financial contributions for transit district operations, including**
885h **expanded service or other similar proposals.** ←§